



CITY OF MANCHESTER
PLANNING AND COMMUNITY DEVELOPMENT

Planning and Zoning
Building Regulation
Code Enforcement
Community Improvement Program

Jeffrey D. Belanger, AICP
Director

Nicola Strong
Deputy Director, Planning & Zoning

Michael J. Landry, PE, Esq.
Deputy Director, Building Regulations

August 31, 2026

Beveylina Realty, LLC (Owner)
c/o Stanley Ziemba
155 Baker Street
Manchester, NH 03103

Boy Scout Troup #106 (Applicant)
c/o Ronald St. Cyr
202 Gold Street
Manchester, NH 03103

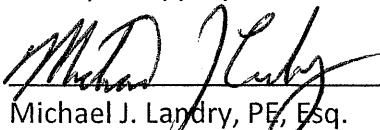
RE: ZBA2026-080, Baker Street Tax Map 735, Lot 19, , B-1

Zoning Relief Required for Use Permit

Your application for a permit dated **August 14, 2026** to establish a seasonal use of the sale of Christmas trees on the lot for a duration of 45 days where 30 days is allowed, with an office trailer on the lot located 1' from the front lot line where 10' is required, and install a 6' high temporary fence in the front yard where 4' is allowed in the MX-1 Zoning District, all as per documents submitted through **August 14, 2026** and with non-compliance listed in the Zoning Review dated **August 26, 2026** is hereby acknowledged.

According to Section(s) **4.7.4 Seasonal Sales of Goods Not Produced on the Lot, 4.7.1.A.1 Duration of Seasonal Sales, 4.7.4.A.3 Accessory Structures Associated with Seasonal Sales, and 8.2.4-A Fence Height – Front Yard** of the Zoning Ordinance of the City of Manchester, New Hampshire, passed to be ordained on March 1, 2026, this is prohibited. Consequently, I have no authority to grant this permit. Permit is hereby DENIED.

Further proceedings contemplated pertaining to this application must be pursuant to NH Revised Statutes Annotated 674:33 or the other statutory provisions relative to Zoning Boards of Adjustment, as may be appropriate.



Michael J. Landry, PE, Esq.
Deputy Director, Building Regulations

ZONING REVIEW

Reviewed By:	Jim Tierney	Date:	8/26/2026
Revised By:	Glenn Gagne	Date Revised:	26-Aug-26
Applicant Name:	Ronald St. Cyr (Agent)	Submission Date:	08/14/2026
Street Address:	Baker Street	Street Status:	Accepted
Secondary Frontages (if any):	Queen City Avenue	Map / Lot:	735 / 019
		Alley Access:	No
		Ward:	9
Base Zone:	MX-1 (Mixed-Use - Neighborhood)		
Building Type:	Other		
	No Building on lot		
Overlay District:	None		

Planning Department / Board Action

- ☐ Site Plan
☐ Subdivision
☐ Planned Development
☐ Conditional Use Permit
☐ Voluntary Merger

Additional Overlays

- ☐ Airport Approach
☐ Airport Noise
☐ Airport Navigational Hazard
☐ FEMA Flood Plain

Additional Review Required

- ☐ Conservation Commission
☐ Regional Impact
☐ Heritage Commission

Dimensions	Existing	Proposed
Area of Lot (Square Feet)	7,480	7,480
Area of Building on Lot (Square Feet)	0	0
Number of Stories	0	0
Total Area of All Floors (Square Feet)	0	0

Article 4 Uses	Permitted Per	Not Permitted Per	Remarks
☐ Temporary Sales	4.7.1		
☐			
☐			
☐			

Article 4 Additional Requirements Per Use	Section	Permitted/ Required	Proposed/ Existing	Remarks
☒ Seasonal Sales (Christmas Trees)	4.7.4	See Ord.	Proposed	N/C - Not Produced on lot
☒ Conditions / Duration	4.7.4.A.1	30 Days	45 Days	N/C
☐				
☐				
☐				
☐				
☐				
☐				

Article 5			Section	Permitted/ Required	Proposed/ Existing	Remarks
Dimensional Requirements						
☐	Minimum Lot	Front-Loaded	5.3.1.P.3.A	100 ft.	135 ft.	OK
☐	Width	Alley-Loaded	5.3.1.P.3.A	100 ft.		
☐	Maximum Lot Width at Frontage		5.3.1.P.3.A	150 ft.	N/A	
☐	Lot Depth		5.3.1.P.3.B	100 ft.	131 ft.	Existing N/C
☐	Front/Street	Minimum	5.3.1.P.3.C	10 ft.	N/A	
☐	Yard Setback	Maximum	5.3.1.P.3.C	20 ft.		
☐	Minimum Combined Side Yard Setback		5.3.1.P.3.D	40 ft.	N/A	
☐	Minimum Setback of One Side		5.3.1.P.3.E	20 ft.	N/A	
☐	Minimum Rear Yard Setback		5.3.1.P.3.F	20 ft.	N/A	
☐	Minimum Buildable Lot Area		5.3.1.P.3.G	10,000 SF	7,480 SF	Existing N/C
☐	Maximum Lot Coverage		5.3.1.P.3.H	75%	0	OK
☐	Uses Within Floors	First Floor			N/A	
☐		Upper Floors			N/A	
☐	Maximum Number of Dwelling Units per Building				N/A	
☐	Additional Lot Area Required for Residential Uses		-	N/A		
☐	Specific Standards					
☐	Specific Standards					
☐	Other					

Article 5			Section	Permitted/ Required	Proposed/ Existing	Remarks
Height Requirements						
☐	Minimum Height in Stories		5.3.1.P.5.A	1 Story	N/A	
☐	Maximum Height in Stories		5.3.1.P.5.B	2.5 Stories		
☐	Maximum Height in Feet		5.3.1.P.5.C	35 ft.	N/A	
☐	Minimum First Story Height					

Article 5 Street Façade Requirements		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Entrance Type	5.4.2.A		N/A	
☐	Street Façade Elements	5.4.2.B		N/A	
☐	Minimum Transparency per Façade	First Story - Primary		N/A	
☐		First Story - Secondary			
☐		Upper Stories			
☐	Blank Wall	Primary Façade		N/A	
☐	Limitations	Secondary Façade			
☐	Number of Street Entrances			N/A	
☐	Roof Types	5.4.6.E		N/A	
☐	Façade Variety	5.4.6.F		N/A	
☐	Building Materials	-	N/A		

Article 5 Accessory Structures		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Setback	Front/Street Yards	10 ft.	See Plan	OK - See Section 4.7.4.A.3
☐		Side Yard		See Plan	OK - See Section 4.7.4.A.3
☐		Rear Yard	4 ft.		
☐	Height	Side Yard	5.6	N/A	
		Rear Yard		N/A	
☐	Size Limits	Side Yard	5.6	N/A	
		Rear Yard		N/A	
☒	Accessory Structures without Principal		5.6.4	15 ft.	1' front, 10' side N/C - Office trailer
Article 7		Section	Permitted/ Required	Proposed/ Existing	Remarks

Parking Requirements		Section	Required	Existing	Remarks
☐	Surface Parking Location			N/A	
☐	Garage Location			N/A	
☐	Parking, Number of Spaces	Table 7.2-A	3	4	OK
☐	Parking Surfaces	7.3.2	Required	Gravel	Existing N/C
☐	Maximum Driveway Width	7.4.2.A		N/A	
☐	Parking, Setbacks, From Lot Lines	7.5.2.A	10 ft.	See Plan	OK
☐	Parking, Setbacks, From Building	7.5.2.A		N/A	
☐	Parking, Principal Frontage	7.5.2.B.2		N/A	
☐	Parking, Tandem	7.5.2.C		N/A	
☐	Parking, Safety of Design	7.5.2.D	See Ord.	See Plan	OK
☐	Parking Lot Perimeter Landscape	8.1.3		N/A	
☐	Parking Lot Interior Landscape, Percent	8.1.5.A		N/A	
☐	Parking Lot Interior Landscape, Tree Distribution	8.1.5.B		N/A	
☐	Landscape Islands	Distribution	8.1.5.C.1		N/A
☐		Island Dimensions	8.1.5.C.2		
☐		Shade Trees Required	8.1.5.C.3		
☐	Landscape Islands	Distribution	8.1.5.C.1		N/A
☐		Island Dimensions	8.1.5.C.2		
☐		Shade Trees Required	8.1.5.C.3		
☐	Parking Lot Interior Landscape, Stormwater Integration	8.1.5.E		N/A	
☐	Parking, Bumpers	7.5.2.F			
☐	Parking, Demarcation	7.5.2.G			
☐	Parking, Illumination	7.5.2.H			
☐	Stacking, Number of Spaces	Table 7.5.3-A		N/A	
☐	Stacking, Design	7.5.3.C			
☐	Loading, Number of Spaces	Table 7.5.4-A		N/A	
☐	Loading, Location	7.5.4.B			
☐	Loading, Screening	7.5.4.D			
☐	Loading, Dimensions	7.5.4.E			
☐	Number of Accessible Parking Spaces	Table 7.6-A		N/A	
☐	Accessible Parking Space, Dimensions	7.6.5 & 7.6.6			

Parking Space Requirements		Unit of Measurement	Computation	Spaces Required
Building Use				
Garden Center		1 per 600 SF	160 SF > 600 SF = .26	1
Outdoor Display		1 per 3000 SF	6000 SF > 3000 SF = 2	2
			TOTAL:	3
Article 6		Section	Permitted/	Proposed/
				Remarks

Special District-Wide Regulations		Section	Required	Existing	Remarks
☐	Limited Activity Buffer	6.4.2			
☐	Wetlands, No-Touch Buffer	6.4.3.C	10 ft.	N/A	
☐	Standard Structural Setback		25 ft.		
☐	Wetlands, No-Touch Buffer	6.4.3.D	25 ft.	N/A	
☐	High Priority Structural Setback		50 ft.		
☐	*Other*	6.4			

Article 8		Section	Permitted/ Required	Proposed/ Existing	Remarks
Site and Landscaping Standards					
☐	Landscaping, Minimum Planting Size	8.1.1.D		N/A	
☐	Landscaped Buffer Yards, Buffer Yard Type Standards	Table 8.1.2-A		N/A	
☐	Landscaped Buffer Yards, District Boundaries	Table 8.1.2-B		N/A	
☐	Landscaped Buffer Yards, Use Abutting R or MX District Boundaries	Table 8.1.2-C		N/A	
☐	Fences and Walls	8.2			
☒	Front and Street Yard	Table 8.2.4-A	4 ft.	6 ft.	N/C - 6 ft. Temporary Fence
☐	Fence Height Side Yard		6 ft.	N/A	
☐	Rear Yard		8 ft.	N/A	
☐	Height of Fences on Walls	8.2.4.A	4 ft.	N/A	
☐	Setback of Retaining Walls > 4 ft.	8.2.4.B	10 ft.	N/A	
☐	Screening of Dumpster & Utilities	Table 8.3-A		N/A	
☐	Visibility at Intersections	8.4	30 ft.	N/A	
☐	Site Lighting Standards	8.5	See Ord.	To Comply	OK
☐	Open Spaces	8.6		N/A	

Section 8.7: Planned Developments	Proposed/ Existing	Remarks
☐	N/A	

*See Planned Development Standards Review Sheet

Article 9: Sign Standards	Proposed/ Existing	Remarks
☐	Shall Comply	OK

*See Sign Standards Review Sheet

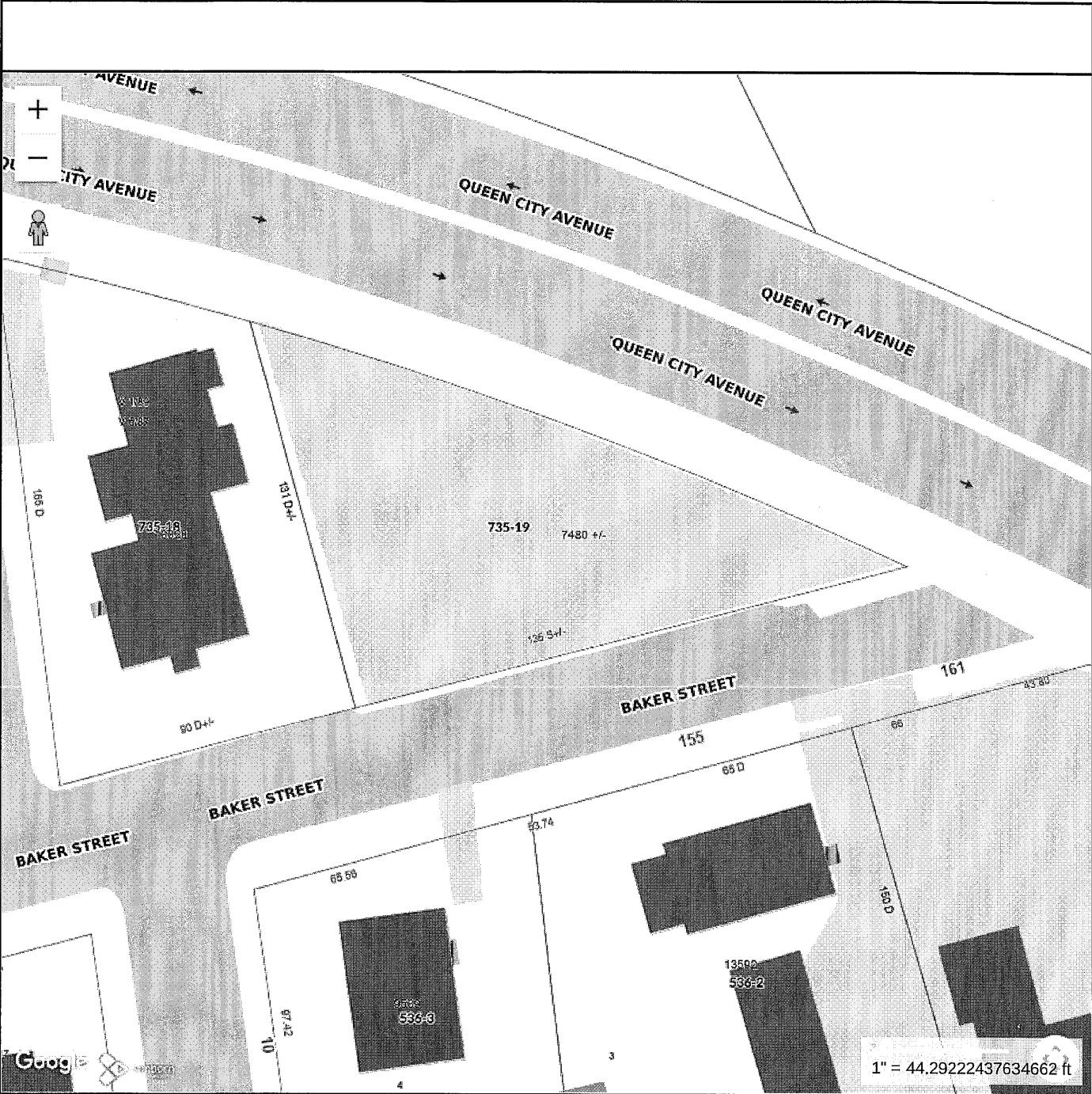
Additional Information:

CURRENT OWNER		TOPO	UTILITIES	STRT / ROAD	LOCATION	CURRENT ASSESSMENT				2017 MANCHESTER, NH VISION							
BEVEYLINA REALTY LLC 155 BAKER ST MANCHESTER NH 03103-6460		1 Suitable	1 All Public	1 Paved	1 Urban	Description	Code	Appraised	Assessed								
		1 Level				COM LAND	3900	109,000	109,000								
SUPPLEMENTAL DATA																	
Alt Prcl ID Land Adjus NO Voided NO Total SF 7480 TIF Zone Frontage/D No GIS ID 735-19						RAD OR C CAD = 770 TIF Origina TIF Note Land Class C Parcel Zip 03103 Assoc Pid#											
						Total				109,000	109,000						
RECORD OF OWNERSHIP		BK-VOL/PAGE	SALE DATE	Q/U	V/I	SALE PRICE	VC	PREVIOUS ASSESSMENTS (HISTORY)									
BEVEYLINA REALTY LLC NORAC REALTY		5811 0	1920 0	05-12-1997	U	4,000 0	04	Year	Code	Assessed	Year	Code	Assessed V	Year	Code	Assessed	
								2025	3900	109,000	2024	3900	109,000	2023	3900	109,000	
		Total						109,000	Total			109,000			Total		109,000
EXEMPTIONS				OTHER ASSESSMENTS				This signature acknowledges a visit by a Data Collector or Assessor									
Year	Code	Description	Amount	Code	Description	Number	Amount									Comm Int	
									APPRAISED VALUE SUMMARY Appraised Bldg. Value (Card) 0 Appraised Xf (B) Value (Bldg) 0 Appraised Ob (B) Value (Bldg) 0 Appraised Land Value (Bldg) 109,000 Special Land Value 0 Total Appraised Parcel Value 109,000 Valuation Method C Total Appraised Parcel Value 109,000								
Total			0.00														
ASSESSING NEIGHBORHOOD																	
Nbhd		Nbhd Name		B		Tracing		Batch									
605						C											
NOTES																	
BUILDING PERMIT RECORD								VISIT / CHANGE HISTORY									
Permit Id	Issue Date	Type	Description	Amount	Insp Date	% Comp	Date Comp	Comments	Date	Id	Type	Is	Cd	Purpost/Result			
									05-24-2016	PM			98	Field Review			
									02-17-2011	DG			98	Field Review			
									04-14-2005	DI			00	Meas & Int Insp.			
									10-19-2000	DP			14	Other			
									03-21-1991				01	Meas/Int Estimate			
LAND LINE VALUATION SECTION																	
B	Use Code	Description	Zone	Land Type	Land Units	Unit Price	I. Factor	Site Index	Cond.	Nbhd.	Nbhd. Adj	Notes		Location Adjustment		Adj Unit P	Land Value
1	3900	DEVEL LAND			7,480 SF	11.66	1.00000	E	1.00	605	1.250				1.0000	14.57	109,000
Total Card Land Units					0 AC	Parcel Total Land Area					0	Total Land Value					109,000

State Use 3900
Print Date 8/7/2026 3:55:44 PM

No Sketch

A black and white photograph of a construction site. In the foreground, there is a large pile of gravel or sand. To the left, a dark car is partially visible. In the background, there are several trees, a utility pole, and a building. A large truck is parked on the right side of the site. The sky is cloudy.



**MAP FOR REFERENCE ONLY
NOT A LEGAL DOCUMENT**

City of Manchester, NH makes no claims and no warranties, expressed or implied, concerning the validity or accuracy of the GIS data presented on this map.

Geometry updated Daily
Data updated Daily

Print map scale is approximate.
Critical layout or measurement
activities should not be done using
this resource.



City of Manchester
Planning & Community Development
One City Hall Plaza-West Wing
Manchester, NH 03101
(603) 624-6475

Jeffrey D. Belanger, AICP
Director

Pamela H. Goucher, AICP
Deputy Director Planning & Zoning

Michael J. Landry, PE, Esq.
Deputy Director Building Regulations

VARIANCE CRITERIA

Complete this form and attach 10 copies along with any supplemental material that would support your appeal.

Deadline for Next Hearing: _____

Property Location: Lot # 135-019 on Baker Street Manchester NH

Owner: Stanley Ziemba

Address: 155 Baker Street Manchester NH
03103

Phone #: _____

Email: _____

Applicant: Ronald St Cyr

Com. Chair Troop 106

Address: 202 Gold St

MANCHESTER NH 03103

Phone #: _____

Email: _____

Relief Sought From Section(s): _____

1. The variance would not be contrary to the public interest because: WE WOULD BE SELLING
ITEMS ASSOCIATED WITH THE HOLIDAY SEASON
2. The spirit of the ordinance is observed because: WE ARE A SMALL TEMPORARY
RETAIL OUTLET
3. Substantial justice would be done because: THERE WOULD BE NO LOSS TO PUBLIC
THE PROFIT FROM TRAP SALES WOULD BE USED TO BENEFIT THE YOUTH OF TRP 106
4. The values of surrounding properties would not be diminished because: WHEN WE LEAVE THE
PROPERTY WILL BE BETTER AND NO GIBING THAT WE WERE EVER THERE
5. Literal enforcement of the provisions of the ordinance would result in unnecessary hardship if:
 - (A) Owing to the following special conditions of the property that distinguish it from other properties in the area:
 - i. No fair and substantial relationship exists between the general purposes of the ordinance provisions and the specific application of that provision to the property; and
 - ii. The proposed use is a reasonable one.

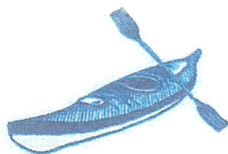
Or (B) Owing to the following special conditions of the property that distinguish it from other properties in the area, the property cannot be reasonably used in strict conformance with the ordinance, and a variance is therefore necessary to enable a reasonable use of it.

THE PROPOSED BUSINESS IS NOT ON A
SELECT CORNER LOT

Ronald St Cyr
Applicant Signature

RONALD ST CYR
Print Name

8-10-2016
Date



Scouting America Troop 106B & 106G

Scouting America New Hampshire, Blessed Sacrament Parish, Manchester New Hampshire

Dear Sir or Madam,

On behalf of Scouting America Troop 106B and 106G (collectively, "Troop 106"), we want to express our sincere appreciation for your willingness to work with us as we plan our Christmas Tree Sales Fundraiser for the holiday season.

This fundraiser is our largest of the year, and its success directly enables us to fund a full calendar year of Scouting activities for the boys and girls of Troop 106. Your support plays a meaningful role in sustaining a program that teaches leadership, service, and character to youth in our community.

As we prepare for the Christmas season, we would like to outline our planned schedule, operations, and commitments for your review.

Operating Dates and Site Use

We respectfully request the use of the space from one week before Thanksgiving through one week after Christmas, specifically November 19 through December 31.

- Nov 19–Nov 27: Site setup, fencing, lighting installation, and delivery of trees.
- Sales Period: From the Friday after Thanksgiving through just before Christmas.
- Dec 26–Dec 31: Breakdown, cleanup, and full restoration of the site.

Sales Hours (Weather Permitting)

- Monday–Friday: 4:00 PM to 8:00 or 9:00 PM
- Saturday–Sunday: 9:00 AM to 9:00 PM

Site Logistics, Safety, and Operations

Troop 106 will fully manage all aspects of the operation, including:

- Supplying our own power, porta-potty, and office trailer
- Installing perimeter fencing to clearly define the operating area
- Providing lighting and security cameras for safety during and after selling hours
- Maintaining 1-2 cars on site per shift, with brief periods of 3-4 cars during shift changes
- Ensuring that trained adult leaders are present at all times to supervise youth whenever they are on site
- Managing our own trash removal, including supplying our own barrels and removing full bags regularly throughout the six-week period

- Shoveling snow within our fenced-in area should any snowfall occur, and piling it in a location that does not interfere with your operations or traffic flow

Insurance and Responsibility

We will add the property owner as an additional insured on our \$1 million general liability policy for the full duration of our use of the property.

Troop 106 acknowledges and accepts responsibility for our own operations, as would be expected. At the conclusion of the fundraiser, we will return the site to its original condition aside from normal wear and tear, ensuring that no debris, materials, or equipment are left behind.

Points of Contact

For any questions, concerns, or issues that arise during the six-week period, please contact:

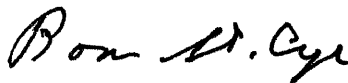
- Primary Contact: Ron St. Cyr, Committee Chair 603-391-2098
- Alternate #1: Marc Bergeron, Scoutmaster 603-345-4428
- Alternate #2: Thomas Burghardt, Committee Member 603-494-9408

Open Invitation for Additional Requirements

While this letter outlines the aspects of the relationship we can anticipate at this time, we respectfully request that you share with us any additional requirements or expectations that would help ensure a smooth, successful, and mutually beneficial partnership.

Thank you again for your support of Troop 106. We value this relationship and look forward to a successful Christmas season working together.

Sincerely,



Ron St. Cyr
Committee Chair
Troop 106

RON ST. CTR
603-391-2098 TREE SITE

N O R T H

INDEX

WEST

SCOUT TROOP 106 B-G #0-TREE STORAGE

#0-	TREE	STORAGE	
#1-	POWER	POLE	
#2-	OFFICE	TRAILER	
#3-	PORTA	POTTY	
#4-	PAY	STATION	
#5-	EQUIPMENT	TRLR.	
#6-	TREE	STANDS	
#7-	WREATHS		
#8-	CUSTOMER	AUTO	
X1	CUT	TREES	
X2	WRAP	TREES	EAST
#9	SIDE	WALK	ENDS

$$15Q = 5AT$$
$$1 \text{ inch} = 20 \text{ FT}$$

GAS CO - 19

END OF BAKER ST.

BAKER ST

S O U T H